

Potter's Farm

A 70 acre parcel acquired by BTA/BOLT, Inc., March 25, 1994. It is surrounded by undeveloped land as well as farmland and is part of a large mixed forest area situated above Hovey's Pond, a designated great pond.

It has several vernal pools, is habitat to owls, deer and other local animals, as well as having a large grove of mature hemlocks. It has many trails, created by BTA/BOLT, Inc. and is a popular nature walk and retreat.

BTA/BOLT Inc. PROPERTY INSPECTION REPORT

1. Property name: Potter's Farm

2. Location [street address]: Washington Street (route 133) West Boxford, MA

— summer
drive
easement

3. Date of inspection: August 21, 2007

4. Size in acres: 70 acres

5. Does the property have a Conservation Restriction on it, if so, who holds it? Yes.
Essex County Greenbelt Association

6. Owner name and address: BTA/BOLT, Inc. P.O. Box 95, Boxford, MA 01921

7. Date property was acquired: 3/25/94; Purchase or donation? Purchase

8. Describe the details of your inspection [where you walked, etc.]: We walked most of the trails on the property and the borders on the power lines.

9. Present use of property: Hiking, horseback riding, bird-watching

10. Note any possible violations or encroachments: none observed

Monitor comments/Intended Follow-up

11. Describe any rare or unusual plant or animal life or sign thereof: great horned owl nesting site; Indian pipes (plant)

12. Additional remarks [particularly as to the present condition of the property]: The property is beautiful and semi-wild, with a great grove of Hemlocks, unfortunately showing some adelgid aphid infestation. Also, indications of 7 vernal pools, currently mostly dry, except for 2 of the larger ones.

13. Names of monitoring team members:

Nick Shrewsbury,
Judy Gore
Natasha Grigg

14. Time spent on property: 2 hours

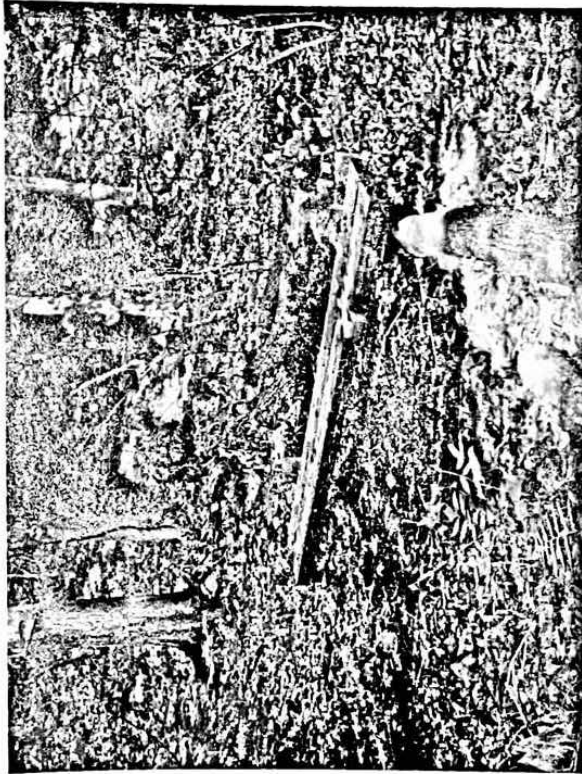
15. Inspection team leader: Natasha Grigg

Natasha Grigg
[printed name]

Natasha Grigg
[signature]

Potter's Farm

Summer 2007 monitoring



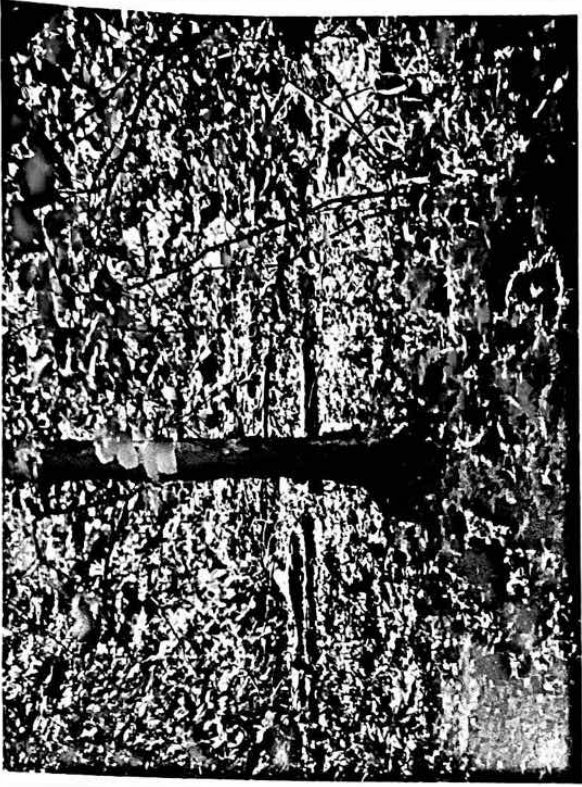
5.

Wooden Bridge: 19 330397E
4730654N Facing NW



7.

Vernal Pool: 19 330356E 4730611N
Facing SW



6.

Vernal Pool: 19 330356E 4730611N
Facing East



8.

Lupin near Vernal Pool: 19 330356E
4730611N Facing East

Potter's Farm



1.

Potter's Farm Entrance: 19 330414E 4730654N
Facing SW



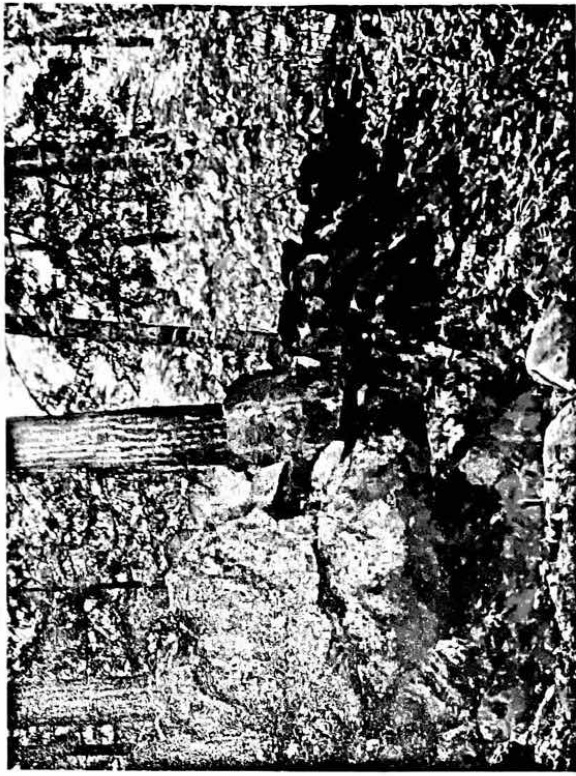
3.

Near Entrance: 19 330409E 4730654N
Facing North



2.

Near Entrance: 19 330414E 4730654N
Facing NE



4.

Stone Wall: 19 330405E 4730645N
Facing NE

Summer 2007 Monitoring

Boxford Trails Association
Boxford Open Land Trust
May 3, 1998

To the Conservation Commission:

We wish to register a complaint against Lottie Narath, 16 Plummer Road, Boxford.

Upon walking the boundaries of our property, known as Potter's Farm, we came upon an area of our land, abutting Mrs. Narath's, where several large trees had been taken down and the stumps covered with debris to hide them. We also found a large pine tree cut up and dumped on our land, as well as some creosote coated material of unknown origin. There was a break in the stone wall leading to Mrs. Narath's property where a large amount of logging had been done, as well as clear cutting right to the very edge of a pond, with no vegetation left at all, except for one hemlock. Since there is no other access to our property except through Mrs. Narath's land, and no visible activity anywhere else, we can only conclude that while she was logging her land, she took some large oaks from our land as well.

We would appreciate your looking into this matter and any advice you might give us.

Natasha Grigg

Land Management Committee, BTA/BOLT

92 Lake Shore Road

gave report to Hunt Dury (sp?) May 4, 1998

Reported Timber Trespass to Robert Hazelwood, May 4, 1998
+ Dumping

1) need to notify Essex County Greenbelt
of Timber Trespass + Dumping

2) need to put CR on all BTA/BOLT property

UNITED STATES DISTRICT COURT
DISTRICT OF MASSACHUSETTS

PORTLAND NATURAL GAS)
TRANSMISSION SYSTEM and)
MARITIMES & NORTHEAST)
PIPELINE, L.L.C.,)
Plaintiffs,)

v.)

CIVIL ACTION NO. 99-11236-PBS

20.38 ACRES OF LAND, MORE)
OR LESS, IN HAVERHILL,)
MASSACHUSETTS, et al.,)
Defendants.)

INSTRUCTIONS TO THE COMMISSIONERS

February 15, 2000

Saris, U.S.D.J.

INTRODUCTION

Portland Natural Gas Transmission Company ("PNGTS") and Maritimes & Northeast Pipeline L.L.C. ("Maritimes") are interstate natural gas pipeline companies that have been authorized by the Federal Energy Regulatory Commission ("FERC") to construct a natural gas pipeline and related facilities along a 17-mile route in northeastern Massachusetts.

Before a natural gas company can construct and operate natural gas transmission pipelines and related facilities, the company must obtain a Certificate of Public Convenience and Necessity from FERC ("Certificate"). PNGTS and Maritimes are the holders of two such Certificates authorizing, among other things, the joint construction, operation and maintenance of a portion of

DOCKETED

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the interstate natural gas transmission pipeline systems that transport gas in international commerce from both off the shore of Nova Scotia, Canada and western Canada to the Canadian-United States border, and then to the Northeastern states of Maine, New Hampshire and Massachusetts.

PNGTS and Maritimes (collectively "Joint Owners") are also parties to certain agreements, approved by FERC, that provide that approximately 103 miles of pipeline that extend from Dracut, Massachusetts to Westbrook, Maine will be owned jointly by PNGTS and Maritimes (the "Joint Pipeline Project"). Approximately seventeen (17) miles of the Joint Pipeline Project are located in Massachusetts. That 17-mile segment traverses properties located in the City of Haverhill and the Towns of Methuen and Dracut.

In order to construct the Massachusetts segment of the Joint Pipeline Project, the Joint Owners needed to acquire temporary and permanent easements on various properties located along the route of the Joint Pipeline Project. The Joint Owners sought to purchase such easements from the landowners, but were unable to acquire all of the necessary easements by contract or agreement pursuant to 15 U.S.C. § 717f(h). Consequently, the Joint Owners filed thirty-five (35) condemnation actions in this Court pursuant to § 7(h) of the Natural Gas Act ("NGA"), 15 U.S.C. § 717f(h), and Rule 71A of the Federal Rules of Civil Procedure to take such easements by eminent domain. Since the initiation of

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CONSCOM 1978 374 2334

those actions, the Joint Owners have reached agreements with a number of those landowners to purchase the necessary easements. There are, however, sixteen landowners remaining with whom the Joint Owners have not reached agreement. Those landowners are:

1. Violet Garabedian/Juniper Realty - 99-CV-11028-PBS;
2. Leon Schlafman and Florence Schlafman - Trustees of State Line Realty Trust - 99-CV-11070-PBS; 373-9584
3. William Ryan and Maureen Ryan - 99-CV-11072-PBS; 521-1130 521-2945
4. Robert Nazarian and Raymond Nazarian - Trustees of Rob-Ray Realty Trust - 99-CV-11074-PBS;
5. Annette Zerveles - 99 CV-11077-PBS;
- ✓ 6. George Haseltine and Genevieve Haseltine - 99-CV-11079-PBS; 372-3417 POIR SETTLEMENT 34 ACRES RUINED LAND
- ✓ 7. Louis M. Saab - 99-CV-11145-PBS; JOHN 603-362-5811 688 3774
8. Elinor Regan, Trustee of Mystic Meadows Realty Trust - 99-CV-11148-PBS; 24624 6887577
9. Alan P. Aulson, Trustee of Great Rock Realty Trust - 99-CV-11150-PBS; 352-2896
10. Charles Noyes and Christine Noyes - 99-CV-11153-PBS; 800' 2500 1/2 ACRE 20 010
11. Daniel Vinal et al, Trustees of RDJ 1997 Realty Trust - 99-CV-11155-PBS;
12. L. Robert DeSanctis - Trustee of Lindbergh Avenue Realty Trust - 99-CV-11159-PBS;
13. Exxon Corporation and Shell Oil Company - 99-CV-11170-PBS

BRUCE HOERN
372 8274

9 LAKE ST. HAV
800' 2500

1/2 ACRE 20 010

14. Pauline J. Hand, Trustee of Burgess Family Trust - 99-CV-11171-PBS;
15. Methuen Rod & Gun Club - 99-CV-11216-PBS; and
16. New England Power Company/Massachusetts Electric Company - 99-CV-11236-PBS.

Exxon Corporation and Shell Oil Company may also have a claim to just compensation because they have an easement that crosses two parcels of land in Dracut, Massachusetts, one owned by John Sieradski, et al., (No. 99-CV-11170-PBS) and the other owned by Gerald J. Lussier (No. 99-CV-11236-PBS).

INSTRUCTIONS

Pursuant to Fed. R. Civ. P. 71A(h), the Court hereby submits instructions to the Commissioners.

(1) Purpose of Commission. The Commissioners have been appointed, after notice and without opposition, pursuant to Fed. R. Civ. P. 71A(h) to determine just compensation for permanent and temporary easements taken by the Joint Owners for a natural gas pipeline and appurtenant facilities on various parcels of land located in the towns of Methuen, Dracut, and the City of Haverhill, Massachusetts. See generally United States v. Merz, 376 U.S. 192, 197 (1964) ("The use of a commission to resolve the issue of just compensation is justified by the facility with which Commissioners may inspect the property and a likelihood that uniformity of awards may be realized expeditiously.").